

25STCV05328 25STCV05328

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-08

Motion: DEFENDANT YMCA OF GREATER LONG BEACH'S MOTION FOR TERMINATING SANCTION, OR IN THE ALTERNATIVE ISSUE AND/OR EVIDENTIARY SANCTIONS; REQUEST FOR SANCTIONS IN THE AMOUNT OF \$7,670.00

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Case Number: 25STCV05328 Hearing Date: September 8, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

SANDRA CASTILLO,

Plaintiff,

vs.

YOUNG MEN'S CHRISTIAN ASSOCIATION

OF GREATER LONG BEACH, CLAUDIA

MENDOZA, ALVARO RODRIGUEZ, and

DOES 1 – 100, inclusive,

Defendants.

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CASE NO: 25STCV05328

[TENTATIVE] ORDER RE: DEFENDANT YMCA OF GREATER LONG BEACH'S MOTION FOR TERMINATING SANCTION, OR IN THE ALTERNATIVE ISSUE AND/OR EVIDENTIARY SANCTIONS; REQUEST FOR SANCTIONS IN THE AMOUNT OF \$7,670.00

Dept. 731

September 8, 2026

8:30 a.m.

Matter No. 15

Moving Party: Defendant, Young Men's Christian Association of Greater Long Beach

Opposing Party: Plaintiff, Sandra Castillo

Notice: OK

Background Facts

Pleadings

Plaintiff Sandra Castillo sues Defendants Young Men's Christian Association of Greater Long Beach (the "YMCA"), Claudia Mendoza ("Mendoza"), Alvaro Rodriguez ("Rodriguez"), and Does 1-100 pursuant to a February 25, 2025, Complaint alleging statutory and common law claims arising from Plaintiff's employment and termination of employment with Defendant the YMCA.

Motions Before the Court

Now before the Court is the YMCA's August 4, 2026, motion for terminating and evidentiary/issue sanctions against Plaintiff, based on the argument that Plaintiff has failed to comply with this Court's orders dated January 8, 2026, and June 16, 2026. In the alternative, the YMCA's motion seeks an order compelling further responses to RFP, Set One, Nos. 45, 59-65, and 92, along with an award of monetary sanctions for discovery abuses by Plaintiff, namely disobeying the January and June 2026 court orders.

Plaintiff opposed YMCA's motion on August 25, 2026, contending she has in fact complied with the Court's orders, a position the YMCA disputes in its August 31, 2026, reply.

Plaintiff's opposition points and authorities do not directly address the motion to compel component of the YMCA's motion, though Plaintiff has filed a separate statement addressing whether further responses should be compelled relating to RFP, Set One, Nos. 45, 50, 59-65, and 92.

Legal Standard Applicable to All Sanctions Motions

"The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. [Citations.] The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should "attempt[] to tailor the sanction to the harm caused by the withheld discovery." [Citation.] The trial court cannot impose sanctions for misuse of the discovery process as a punishment. [Citation.] [¶] The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. "Discovery sanctions 'should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.'" [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.'" (Padron v. Watchtower Bible & Tract Society of New York, Inc. (2017) 16 Cal.App.5th 1246, 1259-1260 (Padron), quoting Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992 (Doppes); accord Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 793 [Discovery sanctions "should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery"]; Karlsson v. Ford Motor Co. (2006) 140 Cal.App.4th 1202, 1217 ["Discovery sanctions must be tailored in order to remedy the offending party's discovery abuse, should not give the aggrieved party more than what it is entitled to, and should not be used to punish the offending party"].)

Motion for Terminating Sanctions

Legal Standard

Terminating sanctions are drastic sanctions that should be imposed sparingly and only when it is clear that the party to be sanctioned has left no viable alternatives. (See *Dept. of Forestry & Fire. Prot. v. Howell* (2017) 18 Cal.App.5th 154, 191, disapproved on other grounds in *Presbyterian Camp & Conf. Ctrs, Inc. v. Superior Court* (2021) 12 Cal.5th 493; *Lopez v. Watchtower Bible & Tract Soc'y* (2016) 246 Cal.App.4th 566, 604.)

The court should consider the totality of the circumstances before ordering terminating sanctions, including (1) whether the conduct of the party was willful, (2) the detriment to the party propounding discovery, and (3) the number of formal and informal attempt to obtain the discovery. (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390.) The Court is not required to find that a party acted in bad faith before imposing terminating sanctions. (See *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 703.)

Discussion

The Court determines that terminating sanctions here would be inappropriate due to the requirement that sanctions be imposed in an incremental fashion. (*Padron, supra*, 16 Cal.App.5th at pp. 1259-1260.) Specifically, the Court has not ordered evidence or issue sanctions in this action, and jumping from the orders the YMCA provisionally seeks to enforce (January 8, 2026, June 16, 2026) to terminating sanctions without intermediary sanctions cannot be sustained per *Padron*.

Conclusion

Defendant Young Men's Christian Association of Greater Long Beach's motion for terminating sanctions is DENIED.

Motion for Evidence and Issue Sanctions

Legal Standard

Issue sanctions either (1) designate certain facts as established in favor of a party adversely affected by the misuse of the discovery process or (2) prohibit a party who misused the discovery process from supporting or opposing certain claims or defenses. (Code Civ. Proc., § 2023.030(b); *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1422; see *In re Marriage of Eustice* (2015) 242 Cal.App.4th 1291, 1308.)

Evidence sanctions prohibit a party who misused the discovery process from introducing designated matters into evidence. (Code Civ. Proc., § 2023.030, subd. (c); *New Albertsons, supra*, 168 Cal.App.4th at p. 1422; see, e.g., Code Civ. Proc., § 2034.300 [party's expert can be excluded from testifying at trial if party did not produce proper expert information]; *Vallbona v. Springer* (1996) 43 Cal.App.4th 1525, 1545 [the court imposed evidence sanctions where defendants misused discovery process by not responding to authorized method of discovery]; *In re Marriage of Falcone & Fyke* (2012) 203 Cal.App.4th 964, 977 [dicta; certain evidence offered by party during trial was excluded as discovery sanction because party had willfully failed to comply with discovery].)

"A discovery order, though not in the form of a default or dismissal, is justifiably treated as such where the effect of the order is to preclude proof of essential elements of each cause of action." (*Puritan Ins. Co. v. Superior Court* (1985) 171 Cal.App.3d 877, 884, citing *Karz v. Karl* (1982) 137 Cal.App.3d 637, 648.)

Discussion

The Court next determines that insufficient grounds exist to impose evidence/issue sanctions on Plaintiff.

The entire basis for terminating, evidence/issue, and monetary sanctions is Plaintiff's purported disobedience of and non-compliance with the Court's January and June 2026 orders. However, the moving papers themselves show facial compliance.

As reflected in the moving papers: On January 8, 2026, the Court ordered Plaintiff to provide further responses to the YMCA's Requests for Production of Documents ("RFP"), Set One, Nos. 37, 42, 43, 51, 66, 67, 84-86, and 92-96. (Motion, Valenti Decl., ¶ 21, Ex. 7.) Plaintiff thereafter served responses to RFP, Set One, Nos. 1-65, 68-82, and 87-96 on January 19, 2026 (id. at ¶ 23, Ex. 8), and to RFP, Set One, Nos. 66-67, 84-86 on February 10, 2026 (id. at ¶ 27, Ex. 11). The YMCA then filed a motion to compel further response to RFP, Set One, Nos. 7, 8, 19, 20, 31, 32, 45, 50, 59-66, and 92, on March 9, 2026 (id. at ¶ 34, Ex. 16), which this Court heard and granted, in part, on June 16, 2026, specifically as to RFP, Set One, Nos. 45, 50, 59-65, and 92 (id. at ¶¶ 35-36, Ex. 17). Plaintiff then served responses to RFP, Set One, Nos. 45, 50, 59-65, and 92 on July 16, 2026 (id. at ¶ 39, Ex. 18), after which the parties met and conferred as to the sufficiency of the responses vis-à-vis this Court's June 16th order before the YMCA filed this motion on August 4, 2026 (id. at ¶¶ 41-45, Exs. 19-22).

Then, as reflected in the opposition and reply: On August 7, 2026, Plaintiff served supplemental responses to RFP, Set One, Nos. 45 and 59-65. (Opposition, Burga Decl., ¶ 30, Ex. 17; Reply, 2:20-26.)

Under the circumstances detailed in the preceding paragraphs, the basis for the imposition of evidence/issue sanctions no longer exists, because that basis—non-compliance with Court orders from January and June 2026—is contradicted by declarations and evidence now before the Court, which show Plaintiff served supplemental responses to various RFP, Set One, requests throughout 2026. To this Court, logically, those supplemental responses must be tested pursuant to Code of Civil Procedure section 2031.310, subdivision (a), prior to the issuance of an order imposing issue, evidence, or terminating sanctions over the same subject matter, as permitted in Code of Civil Procedure section 2031.310, subdivision (i). Consequently, relief cannot be granted as to evidence/issue sanctions.

Conclusion

Defendant Young Men's Christian Association of Greater Long Beach's motion for evidence/issue sanctions is accordingly DENIED.

Motion to Compel Further Responses to Production Requests; Request for Sanctions

Motion to Compel Further

Meet and Confer

A motion to compel further production must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Here, the declarations of counsel show that a sufficient (indeed, months-long) meet and confer process preceded the filing of the motion before the Court. (See, e.g., Motion, Valenti Decl., ¶¶ 21-45, Exs. 7-22.)

Legal Standard

A motion to compel a further response is used when a party gives unsatisfactory answers or makes untenable objections to demands to produce. (See Code Civ. Proc., § 2031.310, subd. (a); Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.)

To request further production, a movant must establish: (1) good cause for the production (Code Civ. Proc., § 2031.310, subd. (b)(1); Sinaiko, supra, at p. 403); and (2) that a further response is needed because (a) the responding party's statement of compliance with the demand to produce is incomplete Code Civ. Proc., § 2031.310, subd. (a)(1)), (b) the responding party's representation that it is unable to comply is inadequate, incomplete, or evasive (Code Civ. Proc., § 2031.310, subd. (a)(2)), (c) the responding party's objection in the response is without merit or is too general (Code Civ. Proc., § 2031.310, subd. (a)(3); Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127), or (d) if the responding party objected to the production of ESI on the ground that it is not reasonably accessible the movant can show that the (i) ESI is reasonably accessible or (ii) there is good cause for production of the ESI regardless of its accessibility (Code Civ. Proc., § 2031.310, subd. (e)).

Discussion

In relevant part, the YMCA seeks a Court order compelling further responses to RFP, Set One, Nos. 45, 59-65, and 92.

After review, the Court determines that, as reflected in the parties' separate statements (summarizing Plaintiff's initial and supplemental responses to RFP, Set One), and as reflected in Exhibit 17 to the Burga declaration attached to Plaintiff's opposition (Seventh Supplemental Responses to RFP, Set One, specifically addressing RFP, Set One, Nos. 45, 59-65):

(1) The seventh supplemental responses to Request Nos. 45 and 61 are Code-compliant, properly noting documents available and not available under section 2031.240, and providing a statement for inability to comply pursuant to 2031.230.

(2) The seventh supplemental responses to Request Nos. 59, 60, and 92 are Code-compliant, properly invoking section 2031.230 to explain Plaintiff's inability to comply—documents never existed for Request Nos. 59 and 60, and no longer has possession for Request No. 92.

(3) The seventh supplemental responses to Request Nos. 62 to 65 are Code-compliant, specifying that all responsive documents have been produced and providing Bates designations for that production.

Conclusion

The YMCA's motion to compel further responses to RFP, Set One, Nos. 45, 59-65, and 92 is accordingly DENIED.

Request for Monetary Sanctions

Having denied relief pursuant to Code of Civil Procedure 2031.310, subdivision (a), the Court DENIES monetary sanctions pursuant to 2031.310, subdivision (i), as requested in the moving papers.

Defendant Young Men's Christian Association of Greater Long Beach is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department

does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 8, 2026 _____

MARK C. KIM

Judge of the Superior Court